

INSTRUCTIONS: All applicable boxes must be checked, and the specified information must be provided.

- #### 4. Description of case

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PLAINTIFF/PETITIONER: FRANCISCUS DYLAN ROSARIO	CASE NUMBER:
DEFENDANT/RESPONDENT: SUBHI ABDELHALIM; CSAA INSURANCE EXCHANGE; CARBONE, SMITH & KOYAMA; AND CHAMBERS	CGC-25-631801

4. b. Provide a brief statement of the case, including any damages (*if personal injury damages are sought, specify the injury and damages claimed, including medical expenses to date [indicate source and amount], estimated future medical expenses, lost earnings to date, and estimated future lost earnings; if equitable relief is sought, describe the nature of the relief*):

See MC-025, Attachment 4b (1 page).

☒ (If more space is needed, check this box and attach a page designated as Attachment 4b.)

5. **Jury or nonjury trial**

The party or parties request ☒ a jury trial ☐ a nonjury trial. (*If more than one party, provide the name of each party requesting a jury trial*):

Franciscus Dylan Rosario, Plaintiff

6. **Trial date**

a. ☐ The trial has been set for (date):

b. ☒ No trial date has been set. This case will be ready for trial within 12 months of the date of the filing of the complaint (*if not, explain*):

c. Dates on which parties or attorneys will not be available for trial (*specify dates and explain reasons for unavailability*):

Plaintiff: none known other than the pending appeals.

7. **Estimated length of trial**

The party or parties estimate that the trial will take (*check one*)

a. ☒ days (*specify number*): 5

b. ☐ hours (short causes) (*specify*):

8. **Trial representation (to be answered for each party)**

The party or parties will be represented at trial ☒ by the attorney or party listed in the caption ☐ by the following:

a. Attorney:

b. Firm:

c. Address:

d. Telephone number:

f. Fax number:

e. Email address:

g. Party represented:

☐ Additional representation is described in Attachment 8.

9. **Preference**

☐ This case is entitled to preference (*specify code section*):

10. **Alternative dispute resolution (ADR)**

a. **ADR information package.** Please note that different ADR processes are available in different courts and communities; read the ADR information package provided by the court under rule 3.221 of the California Rules of Court for information about the processes available through the court and community programs in this case.

(1) For parties represented by counsel: Counsel ☐ has ☐ has not provided the ADR information package identified in rule 3.221 to the client and reviewed ADR options with the client.

(2) For self-represented parties: Party ☒ has ☐ has not reviewed the ADR information package identified in rule 3.221.

b. **Referral to judicial arbitration or civil action mediation** (if available).

(1) ☐ This matter is subject to mandatory judicial arbitration under Code of Civil Procedure section 1141.11 or to civil action mediation under Code of Civil Procedure section 1775.3 because the amount in controversy does not exceed the statutory limit.

(2) ☐ Plaintiff elects to refer this case to judicial arbitration and agrees to limit recovery to the amount specified in Code of Civil Procedure section 1141.11.

(3) ☒ This case is exempt from judicial arbitration under rule 3.811 of the California Rules of Court or from civil action mediation under Code of Civil Procedure section 1775 et seq. (*specify exemption*):

Amount in controversy exceeds the statutory limit for judicial arbitration.

PLAINTIFF/PETITIONER: FRANCISCUS DYLAN ROSARIO DEFENDANT/RESPONDENT: SUBHI ABDELHALIM; CSAA INSURANCE EXCHANGE; CARBONE, SMITH & KOYAMA; AND CHAMBERS	CASE NUMBER: CGC-25-631801
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10. c. In the table below, indicate the ADR process or processes that the party or parties are willing to participate in, have agreed to participate in, or have already participated in (*check all that apply and provide the specified information*):

	The party or parties completing this form are willing to participate in the following ADR processes (<i>check all that apply</i>):	If the party or parties completing this form in the case have agreed to participate in or have already completed an ADR process or processes, indicate the status of the processes (<i>attach a copy of the parties' ADR stipulation</i>):
(1) Mediation	☒	☒ Mediation session not yet scheduled ☐ Mediation session scheduled for (date): ☐ Agreed to complete mediation by (date): ☐ Mediation completed on (date):
(2) Settlement conference	☐	☐ Settlement conference not yet scheduled ☐ Settlement conference scheduled for (date): ☐ Agreed to complete settlement conference by (date): ☐ Settlement conference completed on (date):
(3) Neutral evaluation	☐	☐ Neutral evaluation not yet scheduled ☐ Neutral evaluation scheduled for (date): ☐ Agreed to complete neutral evaluation by (date): ☐ Neutral evaluation completed on (date):
(4) Nonbinding judicial arbitration	☐	☐ Judicial arbitration not yet scheduled ☐ Judicial arbitration scheduled for (date): ☐ Agreed to complete judicial arbitration by (date): ☐ Judicial arbitration completed on (date):
(5) Binding private arbitration	☐	☐ Private arbitration not yet scheduled ☐ Private arbitration scheduled for (date): ☐ Agreed to complete private arbitration by (date): ☐ Private arbitration completed on (date):
(6) Other (<i>specify</i>):	☐	☐ ADR session not yet scheduled ☐ ADR session scheduled for (date): ☐ Agreed to complete ADR session by (date): ☐ ADR completed on (date):

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11. Insurance

- a. ☐ Insurance carrier, if any, for party filing this statement (*name*):
- b. Reservation of rights: ☐ Yes ☐ No
- c. ☐ Coverage issues will significantly affect resolution of this case (*explain*):

12. Jurisdiction

Indicate any matters that may affect the court's jurisdiction or processing of this case and describe the status.

☐ Bankruptcy ☐ Other (*specify*):

Status: No jurisdictional issues.

13. Related cases, consolidation, and coordination

- a. ☒ There are companion, underlying, or related cases.
- (1) Name of case: Rosario v. CSAA Insurance Exchange
- (2) Name of court: San Francisco Superior Court
- (3) Case number: CGC-25-631802
- (4) Status: anti-SLAPP July 1, 2026 (DocID 10297081), CMC September 9, 2026, appeal filed August 14, 2026, Tx 80347004.
- ☒ Additional cases are described in Attachment 13a.
- b. ☐ A motion to ☐ consolidate ☐ coordinate will be filed by (*name party*):

14. Bifurcation

- ☐ The party or parties intend to file a motion for an order bifurcating, severing, or coordinating the following issues or causes of action (*specify moving party, type of motion, and reasons*):

15. Other motions

- ☒ The party or parties expect to file the following motions before trial (*specify moving party, type of motion, and issues*):
- See MC-025, Attachment 15 (1 page). Facts only; no new Dept. 610 motions.

16. Discovery

- a. ☐ The party or parties have completed all discovery.
- b. ☒ The following discovery will be completed by the date specified (*describe all anticipated discovery*):

<u>Party</u>	<u>Description</u>	<u>Date</u>
Plaintiff	No discovery (CCP 916 stay / pending appeal)	N/A

- c. ☒ The following discovery issues, including issues regarding the discovery of electronically stored information, are anticipated (*specify*):

See MC-025, Attachment 16c (1 page).

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17. Economic litigation

- a. ☐ This is a limited civil case (i.e., the amount demanded is \$35,000 or less) and the economic litigation procedures in Code of Civil Procedure sections 90-98 will apply to this case.
- b. ☐ This is a limited civil case and a motion to withdraw the case from the economic litigation procedures or for additional discovery will be filed *(if checked, explain specifically why economic litigation procedures relating to discovery or trial should not apply to this case)*:

18. Other issues

- ☒ The party or parties request that the following additional matters be considered or determined at the case management conference *(specify)*:

See MC-025, Attachment 18 (2 pages). Corrections to defense Aug 14 CM-110.

19. Meet and confer

- a. ☐ The party or parties have met and conferred with all parties on all subjects required by rule 3.724 of the California Rules of Court *(if not, explain)*:
 CRC 3.724 30-day date (Aug 10, 2026) has passed. Parties conferred through pending motions and the defense Aug 14 CMS. CRC 3.724 email has not been sent.
- b. ☐ After meeting and conferring as required by rule 3.724 of the California Rules of Court, the parties agree on the following *(specify)*:
 Parties do not agree on a 180-day continuance pending dismissal. Plaintiff asks a further CMC of about 90 days; no trial; no discovery.

20. Total number of pages attached *(if any)*: 12

I am completely familiar with this case and will be fully prepared to discuss the status of discovery as well as other issues raised by this statement, and will possess the authority to enter into stipulations at the case management conference, including the written authority of the party where required.

resolution,
 at the time of

Date: 08/14/2026

Franciscus Dylan Rosario

(TYPE OR PRINT NAME)

(SIGNATURE OF PARTY OR ATTORNEY)

(TYPE OR PRINT NAME)

(SIGNATURE OF PARTY OR ATTORNEY)

☐ Additional signatures are attached.

SHORT TITLE: Rosario v. Abdelhalim et al.	CASE NUMBER: CGC-25-631801
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ATTACHMENT (Number): 4b

(This Attachment may be used with any Judicial Council form.)

DESCRIPTION OF CASE (ITEM 4b)

This action asserts independent torts: fraud and intentional misrepresentation; bad faith / breach of the implied covenant; Insurance Code unfair-practices claims; an independent action in equity; and negligence. The First Amended Complaint was filed February 25, 2026.

This case is not a collateral attack on the CGC-21-594102 judgment and does not seek to unwind a jury verdict as a substitute for A173827. Remedies sought here (including insurer and counsel theories unavailable in the personal-injury appeal) are independent of that verdict. Unlimited civil; jury demanded. If the complaint is revived on appeal, Plaintiff preserves the jury demand and unlimited designation.

Damages: compensatory; punitive; statutory penalties; equitable relief; costs and interest. Dept. 610 need not relitigate prong two.

(If the item that this Attachment concerns is made under penalty of perjury, all statements in this Attachment are made under penalty of perjury.)

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ATTACHMENT (Number): 13a

(This Attachment may be used with any Judicial Council form.)

RELATED CASES (ITEM 13a)

1. Rosario v. CSAA Insurance Exchange, CGC-25-631802, SF Superior. Companion. Anti-SLAPP granted July 1, 2026 (DocID 10297081). Fees and CCP 391: August 26, 2026, 9:00 a.m., Dept. 302. CMC September 9, 2026, Dept. 610. Appeal of the 802 anti-SLAPP order: filed August 14, 2026; File & ServeXpress Tx 80347004.
2. Rosario v. Abdelhalim et al., CGC-21-594102 (trial) / A173827 (First District). Verdict for defense April 2025. That appeal is separate from the new 801/802 anti-SLAPP appeals.
3. This action's anti-SLAPP appeal. Strike order August 6, 2026 (DocID 10361462). Reconsideration denied August 11, 2026 (minutes; no order DocID). Notice of Appeal filed August 14, 2026; File & ServeXpress Tx 80347363. Appellate number TBA.

Defense Att. 13a used a hyphenated 'CGC-25-631-802'. The companion number is CGC-25-631802.

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ATTACHMENT (Number): 15

(This Attachment may be used with any Judicial Council form.)

OTHER MOTIONS (ITEM 15) - FACTS ONLY

Plaintiff does not ask Dept. 610 to set a new motion calendar or to hear fees or CCP 391. Those matters remain in the law-and-motion departments.

Heard / pending (this action, CGC-25-631801):

- Special motion to strike granted August 6, 2026 (DocID 10361462).
- Reconsideration denied August 11, 2026 (minutes; no order DocID).
- Defendants' CCP 425.16(c) fee motion: September 8, 2026, 9:00 a.m., Dept. 301 (demand \$37,110.46 as noticed).
- Notice of Appeal: filed August 14, 2026; File & ServeXpress Tx 80347363. Stay notice to Dept. 301 filed August 14, 2026; File & ServeXpress Tx 80347943.

Companion 802 (for notice only): anti-SLAPP granted July 1, 2026 (DocID 10297081); fees and CCP 391 August 26, 2026, 9:00 a.m., Dept. 302.

No Answer has been filed. Dept. 610 should not convert this CMC into a fee or vexatious hearing.

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ATTACHMENT (Number): 16c

(This Attachment may be used with any Judicial Council form.)

DISCOVERY (ITEM 16c)

Plaintiff served written discovery in April 2026. A CCP 425.16(g) stay attached when the anti-SLAPP motion was filed. The strike order is now on appeal (filed August 14, 2026; File & ServeXpress Tx 80347363).

CCP 916 and Varian Medical Systems, Inc. v. Delfino (2005) 35 Cal.4th 180 stay further trial-court proceedings on matters embraced in the appealed order. Plaintiff will not propound or move to compel discovery while that stay and the appeals are in effect, and does not ask Dept. 610 to compel, set discovery cutoffs, or order an Answer.

Defendants state they will conduct no discovery. Plaintiff agrees that no discovery should be ordered at this CMC.

(If the item that this Attachment concerns is made under penalty of perjury, all statements in this Attachment are made under penalty of perjury.)

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ATTACHMENT (Number): 18

(This Attachment may be used with any Judicial Council form.)

ITEM 18 - CORRECTIONS TO DEFENDANTS' AUGUST 14, 2026 CM-110 (CGC-25-631801)

This Attachment is Plaintiff's reply on the CM-110. It is not a standalone opposition brief and does not brief Baral or fee lodestar.

1. Item 4. The action is not filed 'to vacate the judgment, and unwind a valid Jury verdict.' See Attachment 4b. Independent torts; not a collateral attack on CGC-21-594102.

2. Items 6 and 7. An anti-SLAPP grant does not 'obviate' trial if the order is reversed. Estimated length is 5 days if the matter returns from appeal, not 0. Plaintiff is not ready within 12 months because of the pending 801/802 anti-SLAPP appeals, not because 'all allegations are issues for the underlying appeal' (A173827).

3. Item 13. Related cases include companion CGC-25-631802, CGC-21-594102 / A173827, and this action's anti-SLAPP appeal (filed August 14, 2026; File & ServeXpress Tx 80347363). The \$76,308.90 underlying-cost line is not a Dept. 610 CMC issue.

4. Item 15. The fee motion is calendared in Dept. 301 on September 8, 2026. Leave it there.

(If the item that this Attachment concerns is made under penalty of perjury, all statements in this Attachment are made under penalty of perjury.)

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ATTACHMENT (Number): 18

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ITEM 18 (continued)

5. Item 18 (defense request). A 180-day continuance 'pending dismissal' prejudices appeals that are being perfected. An anti-SLAPP grant plus a pending appeal is not a judgment of dismissal. CCP 916 / Varian stays trial-court proceedings on matters embraced in the appealed order; it does not authorize Dept. 610 to treat the case as over or to dismiss.

Plaintiff asks Dept. 610 to: (a) take notice of the Notice of Appeal (filed August 14, 2026; File & ServeXpress Tx 80347363) and the stay notice to Dept. 301 (filed August 14, 2026; File & ServeXpress Tx 80347943); (b) not dismiss; (c) not set trial and not order discovery; (d) decline a dismissal-pending 180-day continuance and instead set a further CMC of about 90 days after the August 26 and September 8 hearings and after appellate numbers issue, without prejudice to later continuance during the appeals; (e) leave fees in Dept. 301; (f) preserve jury and unlimited designation if the complaint is revived.

Do not issue a trial-setting or arbitration order at this CMC. If the Court later does so, LRSF 3.2 Notice of Objection would be a later paper, not part of this filing.

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ATTACHMENT (Number): 19

(This Attachment may be used with any Judicial Council form.)

MEET AND CONFER (ITEM 19) - CRC 3.724 / 3.727

The CRC 3.724 30-day meet-and-confer date (August 10, 2026) has passed. The parties have conferred through pending motions (anti-SLAPP, reconsideration, fees) and through Defendants' August 14, 2026 CM-110. The CRC 3.724 email has not been sent.

They do not agree on a 180-day continuance pending dismissal. Plaintiff's position is a further CMC of about 90 days, no trial date, no discovery order, and no dismissal. ADR: Plaintiff is willing to mediate; Defendants' form left the ADR table blank.

Counsel identified on the service packets: Tyler J. O'Connell (toconnell@porterscott.com); Chad S. Tapp (ctapp@porterscott.com); Mason Schubert (mschubert@porterscott.com); Sarah J. Blithe (sblithe@porterscott.com).

(If the item that this Attachment concerns is made under penalty of perjury, all statements in this Attachment are made under penalty of perjury.)

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